



Notification Waiver Determination

Count – O'Brien Accountants & Advisors

Acquisition	Count Limited (Count) applied for a notification waiver in respect of its proposed acquisition of a further 83 fully paid ordinary shares in OBM Financial Services Pty Ltd (O'Brien), taking its ownership to 50.6% on a fully diluted basis, as described in the transaction documents provided as part of the application (the Acquisition). Count currently owns 1,607 fully owned shares in O'Brien, which is a 48.1% ownership on a fully diluted basis.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	3 August 2026

Parties to the Acquisition	The acquirer, Count, is an ASX listed company, comprising an integrated network of over 120 firms providing accounting and wealth management services throughout the country (except for the Northern Territory). Count's business is organised into three operating segments: • Equity Partnerships (includes investments into firms that provide accounting, audit and assurance, taxation, financial planning services as well as business and corporate advisory services); • Wealth (includes financial services and investments products provided by Australian Financial Services Licence holders); and • Services (includes services that support the activities of accounting and financial planning firms that are both internal and external to Count's network, including actuarial certificates, consulting, IT services, training and helpdesk and support services). The target, O'Brien, has a single location in Ivanhoe, Victoria and provides the following services: • accounting and tax services for individuals and business owners, with services including cashflow forecasting and management, budgeting, reporting, compliance and self-managed superannuation fund (SMSF) services; and • personalised financial advice to individuals, families and retail and wholesale businesses, with services including investment advice, retirement planning and superannuation advice.
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	O'Brien operates as an authorised representative under the authorised financial services licence of Count Financial Limited, a Count subsidiary. Count and O'Brien overlap in the supply of financial advisory services and accounting services.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. the parties' combined share in the supply of financial advisory services and accounting services in Victoria and nationally is low and the increase in share of supply arising from the Acquisition would be small b. there are alternative suppliers of financial advisory services and accounting services in Victoria (including in the area surrounding O'Brien's offices) and nationally. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act